

Balendra v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 March 2018 · Writ-C No. 8787 of 2018 · **Writ disposed of; petitioner relegated to Clause 6.14 instalments before the Executive Engineer, subject to part-deposit.**

HEADNOTE

A writ against recovery of electricity charges, seeking only easy instalments, is not the forum for that facility. Clause 6.14 of the U.P. Electricity Supply Code, 2005 vests instalments in the licensee (Executive Engineer). Finding no demonstrated illegality in the 26.12.2017 recovery of Rs.1,67,688, the Court relegated the consumer to that remedy, directing deposit of Rs.67,688 by 31.3.2018, a representation within two weeks (to be decided within a month), and a two-month stay of recovery if that deposit is made.

FACTUAL SUMMARY

The petitioner, Balendra, filed a writ petition in the Allahabad High Court challenging a recovery certificate dated 26 December 2017, by which Rs.1,67,688 was demanded and sought to be recovered as electricity charges. The pleadings did not demonstrate any illegality in issuing that recovery. The petitioner's only prayer through the writ was that easy instalments be fixed for paying the amount, rather than approaching the licensee under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility as alternative remedy

HOLDING

Clause 6.14 of the U.P. Electricity Supply Code, 2005 provides for instalments to the consumer to be extended by the licensee, i.e. the Executive Engineer. A writ seeking only easy instalments of electricity charges is therefore disposed of by relegating the consumer to that alternative remedy. The Court directed deposit of Rs.67,688 by 31 March 2018, a representation to the Executive Engineer within two weeks to be decided within a month, remaining dues as per instalments so fixed, and no recovery for two months if the directed amount is deposited. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 A consumer who wants easy instalments of electricity arrears must approach the Executive Engineer under Clause 6.14; the writ court will relegate rather than fix the schedule itself. ¶ 1